



**Order under Section 69
Residential Tenancies Act, 2006**

Citation: 2748820 ONTARIO INC v KRAEMER, 2025 ONLTB 97113

Date: 2025-12-18

File Number: LTB-L-079157-25

In the matter of: UPPER, 1065 LANGLOIS AVE Courtice
ON N9A2H4

Between: 2748820 ONTARIO INC Landlord

And

JONATHAN KRAEMER Tenant
JENNIFER MORENCY

2748820 ONTARIO INC (the 'Landlord') applied for an order to terminate the tenancy and evict JONATHAN KRAEMER and JENNIFER MORENCY (the 'Tenant') because the Tenant did not pay the rent that the Tenant owes.

This application was heard by videoconference on December 11, 2025.

Only the Landlord, Famille Nantchouang attended the hearing.

The Tenant was not present or represented at the hearing although properly served with notice of this hearing by the LTB. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlord's evidence.

Determinations:

1. The Landlord served the Tenant with a valid Notice to End Tenancy Early for Non-payment of Rent (N4 Notice). The Tenant did not void the notice by paying the amount of rent arrears owing by the termination date in the N4 Notice or before the date the application was filed.
2. The Tenant was in possession of the rental unit on the date the application was filed.

3. The Tenant vacated the rental unit on December 8, 2025. Rent arrears are calculated up to the date the Tenant vacated the unit.
4. The lawful rent is \$1,525.00. It was due on the 1st day of each month.
5. The Tenant has not made any payments since the application was filed.
6. The rent arrears owing to December 8, 2025 are \$4,976.12.
7. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.
8. The Landlord collected a rent deposit of \$1,525.00 from the Tenant and this deposit is still being held by the Landlord. The rent deposit is applied to the arrears of rent because the tenancy terminated.
9. Interest on the rent deposit, in the amount of \$31.75 is owing to the Tenant for the period from February 8, 2025 to December 8, 2025.

It is ordered that:

1. The tenancy between the Landlord and the Tenant is terminated as of December 8, 2025, the date the Tenant moved out of the rental unit.
2. The Tenant shall pay to the Landlord \$3,605.37. This amount includes rent arrears owing up to the date the Tenant moved out of the rental unit and the cost of filing the application. The rent deposit and interest the Landlord owes on the rent deposit is deducted from the amount owing by the Tenant. See Schedule 1 for the calculation of the amount owing.
3. If the Tenant does not pay the Landlord the full amount owing on or before December 29, 2025, the Tenant will start to owe interest. This will be simple interest calculated from December 30, 2025 at 4.00% annually on the balance outstanding.

December 18, 2025

Date Issued

Sandra Macchione

Vice Chair, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

Schedule 1
SUMMARY OF CALCULATIONS

A. Amount the Tenant must pay as the tenancy is terminated

Rent Owing To Move Out Date	\$4,976.12
Application Filing Fee	\$186.00
Less the amount of the last month's rent deposit	- \$1,525.00
Less the amount of the interest on the last month's rent deposit	- \$31.75
Total amount owing to the Landlord	\$3,605.37

2025 ONLTB 97113 (CanLII)